



APEXLABS GLOBAL RESOURCES LIMITED

Address: 33, NURRUDEEN STREET, OLAYEMI BUSTOP, AYOBO, LAGOS STATE, NIGERIA
Tel: 09032459336, 09033506394
Email: apexlabsglobal@gmail.com

SOFTWARE TRIAL, LICENSING, DEPLOYMENT & SUBSCRIPTION AGREEMENT

THIS AGREEMENT is made on this _____ day of _____, 2026 ("Effective Date") BETWEEN:

- APEXLABS GLOBAL RESOURCES LIMITED (RC: 9341285 | TIN: 2622485340557), a company incorporated under the laws of the Federal Republic of Nigeria with its registered address at 33, Nurrudeen Street, Olayemi Bustop, Ayobo, Lagos State, Nigeria ("Apexlabs" or "Developer"); AND
- [INSERT PHARMACY REGISTERED NAME] (RC/BN: [Insert Number]), having its principal office at [Insert Pharmacy Head Office Address] ("Client" or "Pharmacy").

1. SOFTWARE LICENSE & 5-BRANCH SCOPE

1.1 Grant of License: Subject to the terms of this Agreement, Apexlabs grants the Pharmacy a **non-exclusive, non-transferable, revocable commercial license** to use the proprietary offline-first **Pharmacy Management System** (the "Software") solely for the Pharmacy's internal operations across up to **five (5) Authorized Branches** listed in the Schedule below.

1.2 License, Not Sale: The Software is **licensed, not sold**. Paying the deployment and subscription fees grants the right to use the Software and does not transfer ownership of the Software or its source code. Deploying the Software to any additional branch beyond the initial five (5) branches requires written authorization and an additional branch fee.

2. SOFTWARE OWNERSHIP vs. PHARMACY DATA OWNERSHIP

2.1 Apexlabs Owns the Software: Apexlabs retains 100% ownership of all Intellectual Property Rights in the Software, including all desktop and server source code, database schemas, offline synchronization engine, UI/UX design, documentation, and updates. The Pharmacy shall not copy, resell, sublicense, reverse engineer, decompile, or tamper with the Software's licensing or audit mechanisms, nor use it to build a competing product.

2.2 The Pharmacy Owns Its Business Data: The Pharmacy retains **100% ownership of all Client Data** entered or generated in the Software (including product lists, batch/expiry records, stock levels, pricing, sales transactions, supplier details, financial reports, and staff audit logs). Apexlabs claims no ownership over any Pharmacy business records.

3. TRIAL PERIOD, FEES & SUBSCRIPTION TERMS

Fee Component	Amount (NGN)	Scope & Payment Terms
2-Month Trial Period	₦0.00 / month (Subscription waived)	2 Calendar Months ([Start Date] to [End Date]) to evaluate POS billing, inventory/expiry tracking, staff accounts, audit logs, and offline sync.
Initial Production Deployment Fee	₦500,000.00 (One-Time Fee)	Covers cloud setup, 5-branch configuration, PC installation, initial product/inventory import (Excel/CSV), staff role setup, thermal printer/scanner setup, and initial staff training. Non-refundable once deployed.
Monthly Subscription Fee (All 5 Branches Flat)	₦20,000.00 / month (or ₦240,000/year)	Commences on [Subscription Start Date] after the 2-month trial. Covers the 5-branch software license, central cloud sync server, automated cloud backups, bug fixes/updates, and remote support.

3.1 Exclusions from Monthly Fee: The flat **₦20,000/month** subscription covers all 5 Authorized Branches combined, but **excludes:** (a) bespoke/custom new features requested specifically by the Pharmacy (quoted separately); (b) physical hardware (PCs, receipt printers, scanners, routers, UPS); (c) branch internet data/ISP plans; (d) third-party SMS/WhatsApp API charges; and (e) physical on-site visits outside initial onboarding for issues solvable remotely.

3.2 Payment & Late Payment: Monthly subscriptions are payable in advance on or before the **5th day of each month** into Apexlabs' corporate account (Bank: [Insert Bank] | Account Name: APEXLABS GLOBAL RESOURCES LIMITED | Account No: [Insert NUBAN]). If payment remains overdue for more than **14 days** after written reminder, Apexlabs may suspend central cloud synchronization, support, and license renewal until arrears are settled. Subscription rates are fixed for the first 12 months and may be reviewed annually thereafter with at least 30 days' written notice.

4. OFFLINE-FIRST OPERATION, HARDWARE & BACKUPS

4.1 Offline-First Synchronization: Each branch desktop app operates locally (SQLite) when internet is unavailable—recording sales, printing receipts, updating local stock, and logging actions—and automatically synchronizes with the central server once internet connectivity returns.

4.2 Offline Conditions & Local Data Care: The Pharmacy acknowledges that: (a) offline branch transactions will only appear at Head Office or other branches once that branch connects to the internet and syncs; (b) staff must not alter Windows system clocks; and (c) **unsynchronized offline records reside solely on the local branch PC** until synced. While Apexlabs maintains automated cloud backups of all **synchronized** data, Apexlabs is not liable for unsynchronized local transactions lost if a branch stays offline and its PC hard drive crashes, is formatted, or is stolen before syncing. Each branch must connect to the internet to sync **at least once daily**.

4.3 Hardware Responsibility: The Pharmacy is responsible for maintaining compatible branch PCs (Windows 10/11, 8GB RAM, SSD recommended), working UPS power backup, thermal printers, barcode scanners, and internet data. Apexlabs provides up to two (2) free remote software re-installations per year if a branch replaces or formats a PC.

5. CONFIDENTIALITY, STAFF SECURITY & AUDIT LOGS

5.1 Confidentiality & Data Protection (NDPA 2023): Apexlabs shall treat all Pharmacy sales, pricing, inventory, and financial data as strictly confidential, shall never disclose or sell Client Data to any third party or competitor, and shall process data strictly to provide and support the Software in compliance with the **Nigeria Data Protection Act (NDPA) 2023**.





APEXLABS GLOBAL RESOURCES LIMITED

Address: 33, NURRUDEEN STREET, OLAYEMI BUSTOP, AYOBO, LAGOS STATE, NIGERIA
Tel: 09032459336, 09033506394
Email: apexlabsglobal@gmail.com

5.2 Staff Accounts & Audit Trail: The Pharmacy is solely responsible for assigning staff roles, enforcing password secrecy, and immediately deactivating accounts of former staff. All actions taken under valid staff credentials are deemed authorized by the Pharmacy. The Software maintains an immutable **Audit Trail & Inventory Ledger** (recording logins, sales, voids, stock adjustments, and price edits), which the Pharmacy may freely inspect and export for internal auditing and investigations.

6. REGULATORY DISCLAIMER & LIMITATION OF LIABILITY

6.1 Regulatory Disclaimer: The Software is a commercial POS and inventory management tool and does not replace a licensed Pharmacist's clinical judgment. The Pharmacy remains solely responsible for complying with all **PCN, NAFDAC, NDLEA**, and tax regulations.

6.2 Limitation of Liability: Neither Party shall be liable for indirect or consequential losses, lost profits, employee theft, or stock shrinkage. Apexlabs' maximum aggregate liability under this Agreement shall not exceed the total Monthly Subscription Fees paid by the Pharmacy in the **six (6) months** preceding the claim.

7. TERMINATION, DATA EXPORT & GOVERNING LAW

7.1 Termination: If the Pharmacy elects not to proceed at the end of the 2-Month Trial Period, it may terminate by written notice prior to trial expiration without further fee liability. Thereafter, either Party may terminate this Agreement upon **30 days' written notice** (or **14 days' written notice** for uncured material breach or non-payment exceeding 30 days).

7.2 Mandatory Data Export: Upon termination for any reason (subject to settlement of any undisputed accrued fees), all software licenses cease and Apexlabs shall, within **14 days**, provide the Pharmacy with a complete export of all synchronized **Client Data** (products, stock balances, sales history, and audit logs) in standard **Microsoft Excel (.xlsx / .csv)** format.

7.3 Governing Law & Disputes: This Agreement constitutes the entire agreement between the Parties and is governed by the laws of the **Federal Republic of Nigeria**. Any dispute not resolved amicably within 14 days shall be referred to mediation at the **Lagos Multi-Door Courthouse (LMDC)** under the **Arbitration and Mediation Act 2023**, failing which the courts of **Lagos State** shall have jurisdiction.

SCHEDULE OF 5 AUTHORIZED BRANCHES

Branch #	Branch Name	Physical Address	Branch Contact / Phone	Devices Covered
1 (Main/HQ)	[Insert Branch 1]	[Insert Address]	[Insert Name & Phone]	[Up to 3 PCs]
2	[Insert Branch 2]	[Insert Address]	[Insert Name & Phone]	[Up to 2 PCs]
3	[Insert Branch 3]	[Insert Address]	[Insert Name & Phone]	[Up to 2 PCs]
4	[Insert Branch 4]	[Insert Address]	[Insert Name & Phone]	[Up to 2 PCs]
5	[Insert Branch 5]	[Insert Address]	[Insert Name & Phone]	[Up to 2 PCs]

IN WITNESS WHEREOF, the Parties have executed this Agreement on the Effective Date above:

SIGNED FOR APEXLABS GLOBAL RESOURCES LIMITED (DEVELOPER)	SIGNED FOR THE CLIENT (PHARMACY)
Authorized Signatory: ADELEKE ADEBAYO MUJEEB	Pharmacy Name: _____
Title: Director / Managing Director	Authorized Signatory: _____
Signature: _____	Title: _____
Date: _____	Signature & Stamp: _____
Witness Name: _____	Date: _____
Witness Signature & Date: _____	Witness Name & Signature: _____

